

1.

CASE #	CASE NAME	HEARING NAME
CVRI2405996	CLOUD VS FCA US, LLC.	MOTION TO COMPEL

Tentative Ruling:

Defendant's UNOPPOSED Motion to Compel Responses, Set one, is granted.

Trial Setting Conference is set for 9/29/26.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2407275	LC CUSTOM & SPECIAL FINISHES VS ROEBUCK CONSTRUCTION GROUP LLC,	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling:

Defendant's Demurrer, as to the 6th cause of action is sustained with 20 days leave to amend; as to the 1st, 2nd, 3rd, 4th, 7th, 8th, 9th, 10th and 11th causes of action, it is overruled.

Code of Civil Procedure § 430.41 requires a meet and confer process via *phone, videoconferencing, or in person* before filing a demurrer. The meet and confer process requires the moving party to identify the causes of action or allegations subject to attack and the plaintiff to provide legal support for its position. (CCP § 430.41(a)(1).) The parties must meet and confer at least 5 days before the responsive pleading is due. (*Id.* § 430.41(a)(2).)

Here, Defendants' counsel sent only one letter on 5/19/26 to which Plaintiff did not respond. (Follett Decl., ¶ 2.) A unilateral letter does not satisfy the statutory requirements.

REQUESTS FOR JUDICIAL NOTICE

Plaintiff seeks judicial notice in support of its previously filed FAC, demurrer, and notice of ruling on the demurrer. The court declines to consider these since they are not dispositive.

A general demurrer lies where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc. § 430.10(e).) In evaluating a demurrer, the court gives the pleading a reasonable interpretation by reading it as a whole and all of its parts in their context. (*Moore v. Regents of University of California* (1990) 51 Cal.3d 120, 125.) The court assumes the truth of all material facts which have been properly pleaded, of facts which may be inferred from those expressly alleged, and of any material facts of which judicial notice has been requested and may be taken. (*Crowley*